

**BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY.**

PRC Appeal No. 65/2025

M/S Sher Shah & Brothers.
Through its representative, Sher Shah S/o Ali Shah,
Office at Khushal General Store near Ghafoor Shah Road Zhob.

....Appellant

Versus

1. The Government of Balochistan through its Chief Secretary Zarghoon Road Quetta.
2. The Secretary Works PP&H Department through its Secretary, Civil Secretariat Quetta.
3. The Executive Engineer (Building) CW,PP&H Department District Zhob.
4. The Grievance Redressal Committee
5. M/S Ali Nawaz Shahwani & Brothers through Respondent No.3
6. Jahandad Khan SDO CW,PP&H District Zhob
7. Abdul Jalil, Executive Engineer Irrigation Department District Zhob.

....Respondents

Quorum

- | | |
|---------------------------------|-----------------------------|
| 1. Habib Ur Rehman Jamot | MD/Chairman PRC |
| 2. Iftikhar Ahmed Sanjrani | Co-Opted Member PRC |
| 3. Engr. Muhammad Ayub Nasir | Technical Member PRC |
| 4. Engr. Junaid Shah | Member PRC |
| 5. Abdul Wahab Bulledi Advocate | Private Member PRC. |

APPEAL UNDER RULE-56-A OF THE BPPRA RULES 2014 AND ALL OTHER ENABLING PROVISIONS OF LAW AGAINST TSE No.252610894623 BY THE EXECUTIVE ENGINEER AT DISTRICT ZHOB OF CW,PP&H DEPARTMENT GOVERNMENT OF BALOCHISTAN.

For the Appellant:

Mr. Sher Shah, Representative

For the Respondents.

- i. Mr. Abdul Rashid Executive Engineer (Building), CWPP&H, Zhob.
- ii. Syed Naimatullah Superintendent Engineer, CWPP&H.
- iii. Mr. Jahandad Khan, SDO, CWPP&H.
- iv. Mr. Muhammad Aurangzaib A.O, CWPP&H

BRIEF FACTS

The Appellant, M/s Sher Shah & Brothers, claims to be well-known contractor holding a valid Pakistan Engineering Council (PEC) registration under Category C-2. In response to NIT bearing PRQ No. 1923-15-10-2025, issued by the Executive Engineer (Building), CW, PP&H Department, District Zhob, the Appellant participated in the bidding process for TSE No. 252610894603, pertaining to the work titled "Construction of Conference Hall & Boundary Wall Picket & Office for Commissioner Office & House, District Zhob."

The technical bids were opened on 06-11-2025, and the technical evaluation report was uploaded on the BPPRA website on 01-12-2025. The Appellant was declared non-responsive at the technical evaluation stage on the grounds of alleged non-fulfillment of mandatory eligibility criteria relating to turnover and similar assignments. Subsequently, the financial bids were opened on 05-12-2025.

Aggrieved by the technical disqualification, the Appellant approached the Complaint Redressal Committee (CRC) by submitting a written grievance application on 08/12/2025, however, the complaint was dismissed vide decision dated 10-12-2025. Thereafter, the Appellant filed the present appeal under Rule-56-A of the BPPRA Rules, 2014.

PRAYER OF THE APPELLANT

- Set aside the impugned decision dated 10-12-2025 passed by the Complaint Redressal Committee;
- Declare unlawful the technical disqualification of the Appellant imposed by the Procuring Agency in respect of TSE No. 252610894623.
- Direct the Procuring Agency to re-evaluate the Appellant's bid strictly in accordance with the bidding documents and the BPPRA Rules, 2014.
- Grant any other relief deemed just, proper, and appropriate in the circumstances of the case.

REPLY OF THE RESPONDENTS

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- The Appellant was rightly disqualified at the technical evaluation stage for failure to fulfill the mandatory eligibility criteria prescribed in the bidding documents.
 - The Appellant's turnover certificate reflected a significant discrepancy between credit and debit entries.
 - The similar assignment submitted by the Appellant showed a difference between the amount mentioned in the work order and the completion certificate.
 - On account of the above discrepancies, the Appellant's bid was declared non-responsive.
 - The Procuring Agency acted strictly in accordance with the evaluation criteria and applicable rules while rejecting the Appellant's bid.

FINDINGS AND OBSERVATIONS OF THE COMMITTEE

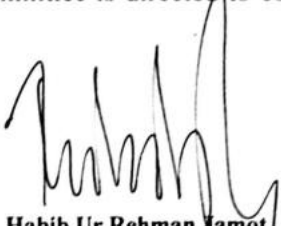
- The Committee notes that the alleged discrepancy in the turnover certificate pertained to the period **from 13-09-2024 to 11-09-2025**, wherein the bank statement reflected **total credit of PKR 149,085,683/-** and **total debit of PKR 1,497,258,963/-**, which was treated by the Procuring Agency as a huge variation and made the basis for disqualification, notwithstanding the subsequent clarification by the issuing bank admitting that the said discrepancy had occurred due to an error at the bank's end.
- The Procuring Agency categorically admitted that the discrepancy occurred due to an error at the bank's end.
- Once such clarification was available, as obtained by the procuring from the bank the basis for disqualification on turnover ceased to exist.
- The Appellant could not lawfully be penalized for a mistake admittedly committed by a third party;
- The Respondents failed to provide any cogent justification for sustaining the disqualification on turnover;
- The authenticity of the completion certificate was never disputed by the Respondents;

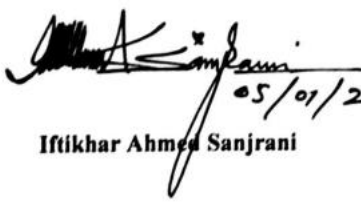
- The rejection on the ground of **similar assignment** was based solely on a numerical variation between the work order and the completion certificate, despite the fact that both documents pertained to the **same project executed under the same PSDP scheme**, wherein the work order was issued for an amount of **PKR 52.67 million**, while the completion certificate was issued for an amount of **PKR 53.180 million**.
- The Procuring Agency was duty-bound to seek verification from the issuing department before drawing an adverse conclusion;
- The failure to verify rendered the rejection arbitrary and procedurally deficient;
- Mere discrepancies without verification do not constitute valid grounds for disqualification under the BPPRA Rules, 2014.
- The case record shows that the decision of CRC was announced on 10/12/2025 while the Appellant filed a Review Appeal with this Committee on 18/12/2025, which is beyond the prescribed time limit. The Appellant states to have received the CRC/GRC decision late, however he could not provide sufficient documentary evidence to this affect.

DECISION

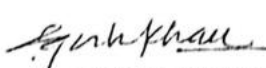
- The Committee observes that the complete Evaluation Report was issued on 05-12-2025, and the Appellant approached the Grievance Redressal Committee (GRC) on 08-12-2025, whereupon the GRC passed its decision on 10-12-2025 and communicated the same to the Appellant.
- In terms of the applicable rules, the Appellant was required to approach the Procurement Review Committee (PRC) within the prescribed period of five (05) days from the date of the decision of the Complaint / Grievance Redressal Committee.
- The record reveals that the Appellant failed to approach the PRC within the stipulated time. As such, the appeal is time-barred and not maintainable.
- Although certain procedural and evaluative deficiencies on the part of the Procuring Agency were noticed during the proceedings, the Committee is constrained to hold that limitation goes to the root of maintainability, and once the statutory time has lapsed, no relief can be granted.
- Consequently, due to the Appellant's failure to avail the legal remedy within the prescribed time, the Committee has no jurisdiction to adjudicate the appeal on merits.
- In view of the arbitrary evaluation conducted by Procuring Agency, the Procuring Agency, CRC and Secretary CWPP& H Department are advised to take notice of such anomalies and to take measures to rectify the flaws in procurement proceedings in order to ensure fair and transparent procurements.
- Accordingly, the appeal filed by M/s Sher Shah & Brothers is hereby dismissed as time-barred.

The Registrar of this Committee is directed to communicate a copy of this decision to the Appellant and all Respondents.


Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)


Iftikhar Ahmed Sanjrani

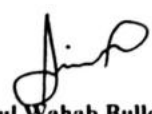
Member
Procurement Review Committee
BPPRA


Engr. Muhammad Ayub Nasar

Member
Procurement Review Committee
BPPRA


Engr. Faraid Shah

Member
Procurement Review Committee
BPPRA


Abdul Wahab Bulledi, Advocate

Member
Procurement Review Committee
BPPRA